

4. S-PR-0010429 Ugo G Cuneo & Leonora Cuneo Rev Trust; In re the

Petition for guardian at litem compensation and attorney fees is recommended for approval as prayed.

5. S-PR-0012045 In Re the Rovianne L Brown Fam Trust

Appearance is required for hearing on petition to instruct trustee re division and distribution of trust assets.

6. S-PR-0012652 In Re the Estate of Plympton, James Timothy Jr.

It is recommended the petition for final distribution and instructions be denied, as follows.

Petitioner incorrectly calculates personal representative and attorney fees. Disposition of estate vehicles by repossession does not result in a total loss to the estate. The repossessing creditor credits each automobile indebtedness account with the proceeds of the repossession sale, resulting in either a gain or loss on sale depending on the amount of proceeds. Where repossessing creditor neither claims a deficiency amount or refunds surplus proceeds, the repossession is scheduled in an account as a no-gain / no-loss disposition for the full asset value. Personal representative and attorney fees should be recalculated after this account error is resolved.

Extraordinary attorney fees are not supported by a sufficient C.R.C. 7.702 declaration. Counsel's declaration does not include any of the showing required by C.R.C. 7.702.

The estate includes insufficient cash to pay personal representative and attorney fees as requested. Clarification or revision is needed; the court will not ordinarily award fees where there is no ready means to pay them.

Revised account is needed. Account includes two disbursements described as "mistaken" use of the estate checking account without explanation or repayment of misused funds. Account improper includes Schedule E, liabilities, as credits. Assets on hand are not liabilities of the estate; any liabilities that require disclosure are not credits but instead are listed solely on an auxiliary schedule. Prob.C. §§ 1061(a)(10) & (b), 1062(f), 1063(a) & 1063(g).

The estate is not in a condition to be closed. Three filed creditor claims (Ally Bank, Verizon, JP Morgan Chase) remain outstanding and have not be approved or rejected by personal representative. Creditors *may* but are not required to deem claims rejected where personal representative has failed to act within 30 days (Prob.C. § 9256). There is no evidence any creditor has done so. Until the claims are resolved, estate administration cannot be closed because the time to bring an action on the claims as not run. Prob.C. § 9352(a). Additionally, petitioner seeks to pay herself for unfiled and time-barred creditor